



Nuclear Installations (Amendment) Act 1965

1965 CHAPTER 6

An Act to make new provision in place of or amend certain provisions of the Nuclear Installations (Licensing and Insurance) Act 1959 so as to give effect to certain international agreements; to make other amendments to that Act; and for connected purposes. [23rd March 1965]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Where a nuclear site licence has been granted in respect of any site, it shall be the duty of the licensee to secure that—

Duty of operator of nuclear installation.

- (a) no such occurrence involving nuclear matter as is mentioned in subsection (2) of this section causes injury to any person or damage to any property of any person other than the licensee, being injury or damage arising out of or resulting from the radioactive properties, or a combination of those and any toxic, explosive or other hazardous properties, of that nuclear matter; and

- (b) no ionising radiations emitted during the period of the licensee's responsibility—

(i) from anything caused or suffered by the licensee to be on the site which is not nuclear matter; or

(ii) from any waste discharged (in whatever form) on or from the site,

cause injury to any person or damage to any property of any person other than the licensee.

(2) The occurrences referred to in subsection (1)(a) of this section are—

- (a) any occurrence on the licensed site during the period of the licensee's responsibility, being an occurrence involving nuclear matter ;
- (b) any occurrence elsewhere than on the licensed site involving nuclear matter which is not excepted matter and which at the time of the occurrence—
 - (i) is in the course of carriage on behalf of the licensee as licensee of that site ; or
 - (ii) is in the course of carriage to that site with the agreement of the licensee from a place outside the relevant territories ; and
 - (iii) in either case, is not on any other relevant site in the United Kingdom ;
- (c) any occurrence elsewhere than on the licensed site involving nuclear matter which is not excepted matter and which—
 - (i) having been on the licensed site at any time during the period of the licensee's responsibility ; or
 - (ii) having been in the course of carriage on behalf of the licensee as licensee of that site,has not subsequently been on any relevant site, or in the course of any relevant carriage, or (except in the course of relevant carriage) within the territorial limits of a country which is not a relevant territory.

(3) In determining the liability by virtue of subsection (1) of this section in respect of any occurrence of the licensee of a licensed site, any property which at the time of the occurrence is on that site, being—

- (a) a nuclear installation ; or
- (b) other property which is on the site—
 - (i) for the purpose of use in connection with the operation, or the cessation of the operation, by the licensee of a nuclear installation which is or has been on that site ; or
 - (ii) for the purpose of the construction of a nuclear installation on that site,

shall, notwithstanding that it is the property of some other person, be deemed to be the property of the licensee.

(4) Subsections (1) to (3) of this section shall apply in relation to the Authority—

- (a) as if any premises which are or have been occupied by the Authority were a site in respect of which a

nuclear site licence has been granted to the Authority ;
and

- (b) as if in relation to any such premises any reference to the period of the licensee's responsibility were a reference to any period during which the Authority is in occupation of those premises.

(5) If a government department uses any site for any purpose which, if section 1 of the Act of 1959 applied to the Crown, would require the authority of a nuclear site licence in respect of that site, subsections (1) to (3) of this section shall apply in like manner as if—

- (a) the Crown were the licensee under a nuclear site licence in respect of that site ; and
(b) any reference to the period of the licensee's responsibility were a reference to any period during which the department occupies the site.

2.—(1) In the case of any nuclear matter which is not excepted matter and which—

(a) is—

(i) in the course of carriage on behalf of a relevant foreign operator ; or

(ii) in the course of carriage to such an operator's relevant site with the agreement of that operator from a place outside the relevant territories,

and is not for the time being on any relevant site in the United Kingdom ; or

- (b) having been on such an operator's relevant site or in the course of carriage on behalf of such an operator, has not subsequently been on any relevant site or in the course of any relevant carriage or (except in the course of relevant carriage) within the territorial limits of a country which is not a relevant territory,

it shall be the duty of that operator to secure that no occurrence such as is mentioned in subsection (2) of this section causes injury to any person or damage to any property of any person other than that operator, being injury or damage arising out of or resulting from the radioactive properties, or a combination of those and any toxic, explosive or other hazardous properties, of that nuclear matter.

(2) The occurrences referred to in the foregoing subsection are—

- (a) an occurrence taking place wholly or partly within the territorial limits of the United Kingdom ; or
(b) an occurrence outside the said territorial limits which also involves nuclear matter in respect of which a duty is imposed on any person by section 1 of this Act.

Duty of
certain
foreign
operators.

Duty of other persons causing nuclear matter to be carried.

3. Where any nuclear matter, not being excepted matter, is in the course of carriage within the territorial limits of the United Kingdom on behalf of any person (hereafter in this section referred to as "the responsible party") and—

- (a) the carriage is not relevant carriage ; and
- (b) the nuclear matter is not for the time being on any relevant site,

it shall be the duty of the responsible party to secure that no occurrence involving that nuclear matter causes injury to any person or damage to any property of any person other than the responsible party, being injury or damage incurred within the said territorial limits and arising out of or resulting from the radioactive properties, or a combination of those and any toxic, explosive or other hazardous properties, of that nuclear matter.

Right to compensation for injury or damage caused by breach of duty.

4.—(1) Where any injury or damage has been caused in breach of a duty imposed by section 1 or 2 of this Act—

- (a) subject to subsection (5) of this section and to sections 5(1), (3) and (4) and 7(1) of this Act, compensation in respect of that injury or damage shall be payable in accordance with section 6 of this Act wherever the injury or damage was incurred ;
- (b) subject to subsections (3) and (4) of this section and to section 10(2) of this Act, no other liability shall be incurred by any person in respect of that injury or damage.

(2) Subject to subsection (3) of this section, any injury or damage which, though not caused in breach of such a duty as aforesaid, is not reasonably separable from injury or damage so caused shall be deemed for the purposes of subsection (1) of this section to have been so caused.

(3) Where any injury or damage is caused partly in breach of such a duty as aforesaid and partly by an emission of ionising radiations which does not constitute such a breach, subsection (2) of this section shall not affect any liability of any person in respect of that emission apart from this Act, but a claimant shall not be entitled to recover compensation in respect of the same injury or damage both under this Act and otherwise than under this Act.

(4) Subject to section 5(5) of this Act, nothing in subsection (1)(b) of this section shall affect—

- 1924 c. 22. (a) the operation of the Carriage of Goods by Sea Act 1924 ; or
- 1932 c. 36. (b) the operation of the Carriage by Air Act 1932, the
- 1961 c. 27. Carriage by Air Act 1961 or the Carriage by Air
- 1962 c. 43. (Supplementary Provisions) Act 1962 in relation to

any international carriage to which a convention referred to in the Act in question applies ; or

- (c) the operation of any Act which may be passed to give effect to the Convention on the Contract for the International Carriage of Goods by Road signed at Geneva on 19th May 1956.

(5) Subject to subsection (6) of this section and to section 6(3) of this Act, section 4(4) and (5) of the Act of 1959 (which relate respectively to the time limit for the bringing of claims for compensation and to the exclusion of certain provisions with respect to ships and aircraft) shall have effect for the purposes of this Act subject to the amendments specified in relation to those subsections respectively in paragraphs 1 and 2 of Schedule 1 to this Act (being amendments to secure that those subsections apply for the purposes of this Act as they applied for the corresponding purposes of that Act).

(6) Notwithstanding anything in section 4(4) of the Act of 1959, a claim in respect of injury or damage caused by an occurrence involving nuclear matter stolen from, or lost, jettisoned or abandoned by, the person whose breach of a duty imposed by section 1 or 2 of this Act gave rise to the claim shall not be entertained if the occurrence takes place after the expiration of the period of twenty years beginning with the day when the nuclear matter in question was so stolen, lost, jettisoned or abandoned.

(7) Section 5(1)(c) of the Act of 1959 shall not apply to any claim such as is mentioned in subsection (6) of this section unless the claim is made within the period of twenty years so mentioned.

5.—(1) Subject to subsections (2) and (5) of this section, compensation shall not be payable under this Act in respect of injury or damage caused by a breach of a duty imposed by section 1 or 2 thereof if the injury or damage—

- (a) was caused by such an occurrence as is mentioned in section 1(2)(b) or (c) or 2(2)(b) of this Act which is shown to have taken place wholly within the territorial limits of one, and one only, of the relevant territories other than the United Kingdom ; or

- (b) was incurred within the territorial limits of a country which is not a relevant territory.

(2) In the case of a breach of a duty imposed by section 1 of this Act, subsection (1)(b) of this section shall not apply to injury or damage incurred by, or by persons or property on, a ship or aircraft registered in the United Kingdom.

(3) Compensation shall not be payable under this Act in respect of injury or damage caused by a breach of a duty imposed by section 2 of this Act in respect of such carriage as is referred to in subsection (1)(a)(ii) of that section unless the agreement so referred to was expressed in writing.

(4) The duty imposed by section 1, 2 or 3 of this Act—

(a) shall not impose any liability on the person subject to that duty with respect to injury or damage caused by an occurrence which constitutes a breach of that duty if the occurrence, or the causing thereby of the injury or damage, is attributable to hostile action in the course of any armed conflict, including any armed conflict within the United Kingdom ; but

(b) shall impose such a liability where the occurrence, or the causing thereby of the injury or damage, is attributable to a natural disaster notwithstanding that the disaster is of such an exceptional character that it could not reasonably have been foreseen.

(5) Where, in the case of an occurrence which constitutes a breach of a duty imposed by section 1 or 2 of this Act, a person other than the person subject to that duty makes any payment in respect of injury or damage caused by that occurrence and—

(a) the payment is made in pursuance of any of the international conventions referred to in the Acts mentioned in section 4(4) of this Act ; or

(b) the occurrence took place within the territorial limits of a country which is not a relevant territory, and the payment is made by virtue of a law of that country and by a person who has his principal place of business in a relevant territory or is acting on behalf of such a person,

the person making the payment may make the like claim under this Act for compensation of the like amount, if any, not exceeding the amount of the payment made by him, and, in the case of a claim by virtue of paragraph (b) of this subsection, not exceeding five million pounds, as would have been available to him if—

(i) the injury in question had been suffered by him or, as the case may be, the property suffering the damage in question had been his ; and

(ii) subsection (1) of this section had not been passed.

(6) The amount of compensation payable to or in respect of any person under this Act in respect of any injury or damage caused in breach of a duty imposed by section 1 or 2 of this Act may be reduced by reason of the fault of that person if, but only if, and to the extent that, the causing of that injury or damage is attributable to any act of that person committed

with the intention of causing harm to any person or property or with reckless disregard for the consequences of his act.

6.—(1) The liability of any person to pay compensation under this Act by virtue of a duty imposed on that person by section 1 thereof shall not require him to make in respect of any one occurrence constituting a breach of that duty payments by way of such compensation exceeding in the aggregate, apart from payments in respect of interest or costs, five million pounds.

Satisfaction
of claims
by virtue of
s. 1 or 2.

(2) A relevant foreign operator shall not be required by virtue of section 2 of this Act to make any payment by way of compensation in respect of an occurrence—

- (a) if he would not have been required to make that payment if the occurrence had taken place in his home territory and the claim had been made by virtue of the relevant foreign law made for purposes corresponding to those of section 1 of this Act ; or
- (b) to the extent that the amount required for the satisfaction of the claim is not required to be available by the relevant foreign law made for purposes corresponding to those of section 5(1) of the Act of 1959 (which relates to the provision of funds to be available for the satisfaction of claims against a licensee) and has not been made available under section 8 of this Act or by means of a relevant foreign contribution.

(3) Any claim by virtue of a duty imposed on any person by section 1 or 2 of this Act—

- (a) to the extent to which, by virtue of subsection (1) or (2) of this section, though duly established, it is not or would not be payable by that person ; or
- (b) which is made after the expiration of the relevant period ; or
- (c) which, being such a claim as is mentioned in section 4(6) of this Act, is made after the expiration of the period of twenty years so mentioned ; or
- (d) which is a claim the full satisfaction of which out of funds otherwise required to be, or to be made, available for the purpose is prevented by section 10(1) of this Act,

shall be made to the appropriate authority, that is to say—

- (i) in the case of a claim by virtue of section 1(4) of this Act, the Minister of Technology ;
- (ii) in the case of a claim by virtue of section 1(5) of this Act (other than a claim in connection with a site used by a department of the Government of Northern Ireland), the Minister in charge of the government department concerned ;
- (iii) in any other case, the Minister,

and, if established to the satisfaction of the appropriate authority, and to the extent to which it cannot be satisfied out of sums made available for the purpose under section 8 of this Act or by means of a relevant foreign contribution, shall be satisfied by the appropriate authority to such extent and out of funds provided by such means as Parliament may determine.

(4) Where in pursuance of subsection (3) of this section a claim has been made to the appropriate authority, any question affecting the establishment of the claim or as to the amount of any compensation in satisfaction of the claim may, if the authority thinks fit, be referred for decision to the appropriate court, that is to say, to whichever of the High Court, the Court of Session and the High Court of Justice in Northern Ireland would, but for the provisions of this section, have had jurisdiction in accordance with section 7(1) and (2) of this Act to determine the claim; and the claimant may appeal to that court from any decision of the authority on any such question which is not so referred; and on any such reference or appeal—

(a) the authority shall be entitled to appear and be heard; and

(b) notwithstanding anything in any Act, the decision of the court shall be final.

(5) In this section, the expression “the relevant period” means the period of ten years beginning with the relevant date within the meaning of section 4(4) of the Act of 1959.

Jurisdiction,
shared liability
and foreign
judgments.

7.—(1) No court in the United Kingdom or any part thereof shall have jurisdiction to determine any claim or question under this Act certified by the Minister to be a claim or question which, under any relevant international agreement, falls to be determined by a court of some other relevant territory or, as the case may be, of some other part of the United Kingdom; and any proceedings to enforce such a claim which are commenced in any court in the United Kingdom or, as the case may be, that part thereof shall be set aside.

(2) Where under the foregoing subsection the Minister certifies that any claim or question falls to be determined by a court in a particular part of the United Kingdom, that certificate shall be conclusive evidence of the jurisdiction of that court to determine that claim or question.

(3) Where by virtue of any one or more of the following, that is to say, sections 1 and 2 of this Act and any relevant foreign law made for purposes corresponding to those of either of those sections, liability in respect of the same injury or damage is incurred by two or more persons, then, for the purposes of any

proceedings in the United Kingdom relating to that injury or damage, including proceedings for the enforcement of a judgment registered under the Foreign Judgments (Reciprocal Enforcement) Act 1933— 1933 c. 13.

- (a) both or all of those persons shall be treated as jointly and severally liable in respect of that injury or damage ; and
- (b) until claims against each of those persons in respect of the occurrence by virtue of which the person in question is liable for that injury or damage have been satisfied—

- (i) in the case of a licensee, the Authority or the Crown, up to an aggregate amount of five million pounds ; or

- (ii) in the case of a relevant foreign operator, up to such aggregate amount, not being less than one and three quarter million pounds, as may be provided for by the relevant foreign law made for purposes corresponding to those of section 5 (1) of the Act of 1959,

no sums in excess of those required for the purposes of sub-paragraph (i) of this paragraph shall be required to be made available under section 8 of this Act for the purpose of paying compensation in respect of that injury or damage.

(4) Part I of the said Act of 1933 shall apply to any judgment given in a court of any foreign country which is certified by the Minister to be a relevant foreign judgment for the purposes of this Act, whether or not it would otherwise have so applied, and shall have effect in relation to any judgment so certified as if in section 4 of that Act subsections (1)(a)(ii), (2) and (3) were omitted.

(5) It shall be sufficient defence to proceedings in the United Kingdom against any person for the recovery of a sum alleged to be payable under a judgment given in a country outside the United Kingdom for that person to show that—

- (a) the sum in question was awarded in respect of injury or damage of a description which is the subject of a relevant international agreement ; and
- (b) the country in question is not a relevant territory ; and
- (c) the sum in question was not awarded in pursuance of any of the international conventions referred to in the Acts mentioned in section 4(4) of this Act.

(6) Where, in the case of any claim by virtue of section 2 of this Act, the relevant foreign operator is the government of

a relevant territory, then, for the purposes of any proceedings brought in a court in the United Kingdom to enforce that claim, that government shall be deemed to have submitted to the jurisdiction of that court, and accordingly rules of court may provide for the manner in which any such action is to be commenced and carried on; but nothing in this subsection shall authorise the issue of execution, or in Scotland the execution of diligence, against the property of that government.

General
cover for
compensation
by virtue of
s. 1 or 2.

8.—(1) In the case of any occurrence in respect of which one or more persons incur liability by virtue of section 1 or 2 of this Act or by virtue of any relevant foreign law made for purposes corresponding to those of either of those sections, but subject to subsections (2) and (3) of this section and to sections 7(3)(b) and 10(1) of this Act, there shall be made available out of moneys provided by Parliament such sums as, when aggregated—

- (a) with any funds required by, or by any relevant foreign law made for purposes corresponding to those of, section 5(1) of the Act of 1959 to be available for the purpose of satisfying claims in respect of that occurrence against any licensee or relevant foreign operator; and
- (b) in the case of a claim by virtue of any such relevant foreign law, with any relevant foreign contributions towards the satisfaction of claims in respect of that occurrence,

may be necessary to ensure that all claims in respect of that occurrence made within the relevant period and duly established, excluding, but without prejudice to, any claim in respect of interest or costs, are satisfied up to an aggregate amount of forty-three million pounds.

(2) Subsection (1) of this section shall not apply to any claim by virtue of such a relevant foreign law as is mentioned in that subsection in respect of injury or damage incurred within the territorial limits of a country which is not a relevant territory or to any claim such as is mentioned in section 4(6) of this Act which is not made within the period of twenty years so mentioned.

(3) Where any claim such as is mentioned in subsection (1) of this section is satisfied wholly or partly out of moneys provided by Parliament under that subsection, there shall also be made available out of moneys so provided such sums as are necessary to ensure the satisfaction of any claim in respect of interest or costs in connection with the first-mentioned claim.

(4) In relation to liability by virtue of any relevant foreign law—

- (a) there shall be left out of account for the purposes of subsection (1) of this section any claim which, though

made within the relevant period, was made after the expiration of any period of limitation imposed by that law and permitted by a relevant international agreement ;

- (b) unless that law provides a maximum aggregate amount of compensation in respect of the occurrence in question equivalent to forty-three million pounds and so provides in pursuance of a relevant international agreement, the said subsection (1) shall have effect in relation to that occurrence as if for the reference to forty-three million pounds there were substituted a reference to five million pounds.

(5) Any sums received by the Minister by way of a relevant foreign contribution towards the satisfaction of any claim by virtue of section 1 or 2 of this Act shall be paid into the Exchequer.

(6) In this section, the expression " the relevant period " has the same meaning as in section 6 of this Act.

9.—(1) Section 5(1) of the Act of 1959 shall have effect for the purposes of this Act subject to the amendments specified in paragraph 3 of Schedule 1 to this Act, being amendments to secure that—

Special cover
for licensee's
liability.

- (a) the said section 5(1) applies for the purposes of this Act as it applied for the corresponding purposes of that Act ; and
- (b) any claim made or liability incurred by virtue of any relevant foreign law made for purposes corresponding to those of section 2 of this Act is treated for the purposes of the said section 5(1) as if it were a claim or liability by virtue of section 1(1) of this Act in respect of an occurrence such as is mentioned in section 1(2)(b) or (c) thereof.

(2) Any person by whom any funds such as are mentioned in the said section 5(1) for the time being fall to be provided shall give to the Minister not less than two months' notice in writing before ceasing to keep those funds available and, notwithstanding any such notice, so far as those funds relate to nuclear matter for the time being in the course of carriage, shall not so cease while that carriage continues.

(3) Where a licensee has given to the Minister in respect of any cover period such a notice as is mentioned in section 5(3)(a)(i) of the Act of 1959, no payment by way of settlement of any claim in respect of that cover period by agreement between the licensee and the claimant shall be made except after consultation with the Minister and in accordance with the terms of any direction which the Minister may give to the licensee

in writing with respect to any particular claim; and sub-paragraph (ii) of the said section 5(3)(a) shall cease to have effect.

(4) If at any time while the said section 5(1) applies in relation to any licensed site the provisions thereof are not complied with in respect of that site, the licensee shall be guilty of an offence under section 5 (4) of the Act of 1959 whether or not any person is for the time being using the site as mentioned in the said section 5 (4).

(5) In section 5(3) of the Act of 1959, for the reference to the proviso to section 4(4) of that Act there shall be substituted a reference to section 6 of this Act.

Supplementary provisions with respect to cover for liability by virtue of s. 1 or 2 in respect of carriage.

10.—(1) Where, in the case of an occurrence involving nuclear matter in the course of carriage, a claim in respect of damage to the means of transport being used for that carriage is duly established—

- (a) against any person by virtue of section 1 or 2 of this Act; or
- (b) against the licensee, the Authority or the Crown by virtue of any relevant foreign law made for purposes corresponding to those of the said section 2,

then, without prejudice to any right of the claimant to the satisfaction of that claim, no payment towards its satisfaction shall be made out of funds which are required to be available for the purpose by, or by any relevant foreign law made for purposes corresponding to those of, section 5(1) of the Act of 1959, or which have been made available for the purpose under section 8 of this Act or by means of a relevant foreign contribution, such as to prevent the satisfaction out of those funds up to an aggregate amount of one and three quarter million pounds of all claims which have been or may be duly established against the same person in respect of injury or damage caused by that occurrence other than damage to the said means of transport.

(2) Where, in the case of an occurrence involving nuclear matter in the course of carriage, a claim in respect of damage to the means of transport being used for that carriage is duly established against a relevant foreign operator by virtue of section 2 of this Act, but by virtue of section 6(2)(a) thereof that operator is not required to make a payment in satisfaction of the claim, section 4(1)(b) of this Act shall not apply to any liability of that operator with respect to the damage in question apart from this Act.

(3) Where any nuclear matter is to be carried by, or on behalf or with the agreement of, a licensee, the Authority, a government department or a relevant foreign operator in such circumstances that, while the matter is in the course of that carriage, the licensee, the Authority, the Crown or the operator, as the case

may be (in this and the next following subsection referred to as "the responsible party") may incur liability by virtue of section 1 or 2 of this Act or by virtue of any relevant foreign law made for purposes corresponding to those of the said section 2, the responsible party shall, before the carriage is begun, cause to be delivered to the person who is to carry that matter a document issued by or on behalf of the appropriate person mentioned in the next following subsection (in this subsection referred to as "the guarantor") which shall contain such particulars as may be prescribed of the responsible party, of that nuclear matter and carriage, and of the funds available in pursuance of, or of the relevant foreign law made for purposes corresponding to those of, section 5(1) of the Act of 1959 or section 8 of this Act to satisfy any claim by virtue of that liability, and the guarantor shall be debarred from disputing in any court any of the particulars stated in that document; and if in any case there is a wilful failure to comply with this subsection, the responsible party (except where that party is the Crown), and also, if the carrier knew or ought to have known the matter carried to be such matter for carriage in such circumstances as aforesaid, the carrier, shall be guilty of an offence and liable on summary conviction to a fine not exceeding fifty pounds.

(4) The person by whom or on whose behalf the document referred to in the last foregoing subsection is to be issued shall be—

- (a) where the responsible party is a licensee, the person by whom there fall to be provided the funds required by section 5(1) of the Act of 1959 to be available to satisfy any claim in respect of the carriage in question;
- (b) where the responsible party is the Authority, the Minister of Technology;
- (c) where the responsible party is the Crown, the Minister in charge of the government department concerned;
- (d) where the responsible party is a relevant foreign operator, the person by whom there fall to be provided the funds required by the relevant foreign law made for purposes corresponding to those of the said section 5(1) or 8 to be made available to satisfy any claim in respect of the carriage in question.

(5) Section 8(1) and (3) of the Act of 1959 (which relate to offences) shall apply to an offence under subsection (3) of this section as they apply to an offence under that Act.

(6) The requirements of Part VI of the Road Traffic Act 1960 c. 16, 1960 (which relates to compulsory insurance or security against

third-party risks of users of motor vehicles) shall not apply in relation to any injury to any person for which any person is liable by virtue of section 1 or 2 of this Act.

**Nuclear site
licences.**

11.—(1) Section 1(1)(a) of the Act of 1959 (by virtue of which a nuclear site licence is required for the use of any site for the purpose of installing or operating certain plant) shall include any nuclear reactor other than such a reactor comprised in a means of transport, whether by land, water or air.

(2) Regulations made by virtue of paragraph (b) of section 1(1) of the Act of 1959 (by virtue of which a nuclear site licence may be required for the use of any site for the purpose of installing or operating an installation of a particular class or description) may exempt, or make provision for exempting, from the requirements of the said section 1(1), either unconditionally or subject to compliance with prescribed conditions, any installation which the Minister is satisfied is not, or if the prescribed conditions were complied with would not be, a relevant installation.

(3) Section 1(4)(b) of the Act of 1959 (which authorises the Minister to attach to a nuclear site licence conditions with respect to the handling, treatment and disposal of any nuclear fuel which becomes irradiated in the course of its use on the site) shall apply in relation to all nuclear matter as it applies in relation to such nuclear fuel as aforesaid.

(4) The Minister may from time to time vary any nuclear site licence by excluding therefrom any part of the licensed site which the licensee no longer needs for any use requiring such a licence and with respect to which the Minister is satisfied that there is no danger from ionising radiations from anything thereon.

(5) For section 2(3)(b) of the Act of 1959 (which provides for the period of responsibility of a licensee under a nuclear site licence which has been revoked or surrendered to end as respects the site in question or any part thereof on the date when such a licence in respect of the site or, as the case may be, that part thereof is granted to some other person) there shall be substituted the following:—

“(b) the date when a new nuclear site licence in respect of a site comprising the site in question or, as the case may be, that part thereof is granted either to the same licensee or to some other person.”

(6) A nuclear site licence may include provision with respect to the time from which section 5(1) of the Act of 1959 is to apply in relation to the licensed site, and where such provision is so included the said section 5(1) shall not apply in relation to that site until that time or the first occasion after the grant of

the licence on which any person uses the site for the operation of a nuclear installation, whichever is the earlier ; and the period of responsibility of the licensee under the licence shall not include any period during which the said section 5(1) does not apply in relation to the site.

(7) In section 2(2) of the Act of 1959, the reference to hurt shall be construed as a reference to injury.

12.—(1) Section 6(2), (3), (4) and (7) of the Act of 1959 (which relate to the reporting of and inquiries into dangerous occurrences) shall have effect on the happening of any occurrence of any such class or description as may be prescribed, being an occurrence—

(a) on a licensed site ; or

(b) in the course of the carriage of nuclear matter on behalf of any person other than the Authority or a government department, where a duty with respect to that carriage is imposed on that person by section 1, 2 or 3 of this Act ;

and in the said section 6(2) any reference to the licensee shall be construed as a reference to the licensee or person aforesaid ; and accordingly subsection (1) of the said section 6 shall cease to have effect.

(2) Subsection (5) of the said section 6 (which empowers the Minister to make orders with respect to the registration of persons in certain areas during the period of certain occurrences)—

(a) shall apply on the happening of any occurrence in respect of which liability may be incurred by virtue of section 1, 2 or 3 of this Act and accordingly shall have effect as if for the words “claim against the licensee by virtue of subsection (1) of section four of this Act”, there were substituted the words “claim against any person by virtue of section 1, 2 or 3 of the Nuclear Installations (Amendment) Act 1965” ;

(b) shall have effect as if for the reference to the Minister there were substituted a reference to the appropriate authority in relation to the person against whom any claims fall to be made, that is to say—

(i) where that person is the Authority, the Minister of Technology ;

(ii) where that person is the Crown, the Minister in charge of the government department concerned ;

(iii) in any other case, the Minister.

(3) Subsection (6) of the said section 6 (which relates to the commencement of a new cover period) shall apply on the

happening of any occurrence which has resulted or may result in a claim against a licensee by virtue of section 1(1) of this Act or any relevant foreign law made for purposes corresponding to those of section 2 of this Act.

(4) The powers of and in connection with entry on premises conferred on an inspector by section 7(2) of the Act of 1959 shall apply in relation to a site which is being used for such purposes that, but for regulations made by virtue of section 11(2) of this Act, a nuclear site licence would be required in respect thereof and in relation to the person so using that site as they apply in relation to a licensed site during the period of the licensee's responsibility and in relation to the licensee; and—

(a) any reference in the said section 7 to the execution of that Act shall be construed as including a reference to the execution of this Act ;

(b) the powers conferred on an inspector by that section shall include power, subject to production, if so requested, of written evidence of his authority—

(i) to enter any place, vehicle, vessel or aircraft involved in any such occurrence as is mentioned in subsection (1) of this section with such equipment, and to carry out such tests and inspections, as he may consider necessary or expedient ;

(ii) to require the licensee or other person referred to in the said subsection (1) concerned in any such occurrence and any other person with duties concerning the nuclear matter involved in the occurrence to provide him with such information, or to permit him to inspect such documents, relating to the nuclear matter as the inspector may specify ;

(c) the references in subsection (3) of that section to paragraphs (a) and (b) respectively of subsection (2) thereof shall be construed as including references to subparagraphs (i) and (ii) respectively of paragraph (b) of this subsection.

(5) In such cases and to such extent as it may appear to the Minister, with the agreement of the Treasury, to be appropriate so to do, the Minister shall require a licensee to repay to the Minister such part as may appear to the Minister to be attributable to the nuclear installations in respect of which nuclear site licences have been granted to that licensee of—

(a) any sums paid by the Minister under section 7(1) of the Act of 1959 ; and

(b) any expenses, being—

(i) expenses incurred by the Minister ; or

(ii) expenses incurred by any other government department in connection with the Ministry of Power ; or

(iii) such sums as the Treasury may determine in respect of the use for the purposes of that Ministry of any premises belonging to the Crown, which the Minister may, with the consent of the Treasury, determine to be incurred in connection with the exercise by the Minister of his powers under the said section 7(1),

and the licensee shall comply with any such requirement ; and any sums so repaid to the Minister shall be paid into the Exchequer.

(6) Any liability of a licensee in respect of sums payable by him under subsection (5) of this section on account of pensions shall, if the Minister so determines, be satisfied by way of contributions calculated, at such rate as may be determined by the Treasury, by reference to remuneration.

13.—(1) In this Act, except where the context otherwise Interpretation. requires, the following expressions have the following meanings respectively, that is to say—

“ the Act of 1959 ” means the Nuclear Installations 1959 c. 46. (Licensing and Insurance) Act 1959 ;

“ the Authority ” means the United Kingdom Atomic Energy Authority ;

“ excepted matter ” means nuclear matter consisting only of one or more of the following, that is to say—

(a) isotopes prepared for use for industrial, commercial, agricultural, medical or scientific purposes ;

(b) natural uranium ;

(c) any uranium of which isotope 235 forms not more than 0.72 per cent. ;

(d) nuclear matter of such other description, if any, in such circumstances as may be prescribed (or, for the purposes of the application of this Act to a relevant foreign operator, as may be excluded from the operation of the relevant international agreement by the relevant foreign law) ;

“ home territory ”, in relation to a relevant foreign operator, means the relevant territory in which, for the purposes of a relevant international agreement, he is the operator of a relevant installation ;

“ injury ” means personal injury and includes loss of life ;

“ nuclear installation ” means a nuclear reactor or an

installation such as is mentioned in section 1(1)(b) of the Act of 1959 ;

“ nuclear matter ” means, subject to any exceptions which may be prescribed—

(a) any fissile material in the form of uranium metal, alloy or chemical compound (including natural uranium), or of plutonium metal, alloy or chemical compound, and any other fissile material which may be prescribed ; and

(b) any radioactive material produced in, or made radioactive by exposure to the radiation incidental to, the process of producing or utilising any such fissile material as aforesaid ;

“ nuclear reactor ” means any plant (including any machinery, equipment or appliance, whether affixed to land or not) designed or adapted for the production of atomic energy by a fission process in which a controlled chain reaction can be maintained without an additional source of neutrons ;

“ occurrence ” in sections 6(1), 7(3) and 8 of this Act—

(a) in the case of a continuing occurrence, means the whole of that occurrence ; and

(b) in the case of an occurrence which is one of a succession of occurrences all attributable to a particular happening on a particular relevant site or to the carrying out from time to time on a particular relevant site of a particular operation, means all those occurrences collectively ;

“ relevant carriage ”, in relation to nuclear matter, means carriage on behalf of—

(a) a licensee as the licensee of a particular licensed site ; or

(b) the Authority, or

(c) a government department for the purposes of such use of a site by that department as is mentioned in section 1(5) of this Act ; or

(d) a relevant foreign operator ; or

(e) a person authorised to operate a nuclear reactor which is comprised in a means of transport and in which the nuclear matter in question is intended to be used ;

“ relevant foreign contribution ”, in relation to any claim, means any sums falling by virtue of any relevant international agreement to be paid by the government of any relevant territory other than the United Kingdom towards the satisfaction of that claim ;

“ relevant foreign judgment ” means a judgment of a court of a relevant territory other than the United Kingdom which, under a relevant international agreement, is to be enforceable anywhere within the relevant territories ;

“ relevant foreign law ” means the law of a relevant territory other than the United Kingdom or any part thereof regulating in accordance with a relevant international agreement matters falling to be so regulated and, in relation to a particular relevant foreign operator, means the law such as aforesaid of his home territory ;

“ relevant foreign operator ” means a person who, for the purposes of a relevant international agreement, is the operator of a relevant installation in a relevant territory other than the United Kingdom ;

“ relevant installation ” means an installation to which a relevant international agreement applies ;

“ relevant international agreement ” means an international agreement with respect to third-party liability in the field of nuclear energy to which the United Kingdom or Her Majesty’s Government therein are party, other than an agreement relating to liability in respect of nuclear reactors comprised in means of transport ;

“ relevant site ” means any of the following, that is to say—

(a) a licensed site at any time during the period of the licensee’s responsibility ;

(b) any premises at any time when they are occupied by the Authority ;

(c) any site at any time when it is occupied by a government department, if that site is being or has been used by that department as mentioned in section 1(5) of this Act ;

(d) any site in a relevant territory other than the United Kingdom at any time when that site is being used for the operation of a relevant installation by a relevant foreign operator ;

“ relevant territory ” means a country for the time being bound by a relevant international agreement ;

“ territorial limits ” includes territorial waters ;

and section 10(1) of the Act of 1959 (which relates to the interpretation of that Act) shall apply for the purposes of this Act as it applies for the purposes of that Act.

(2) In the application of this Act and the Act of 1959 to Scotland, for any reference to costs there shall be substituted a reference to expenses.

(3) References in this Act to the carriage of nuclear matter shall be construed as including references to any storage incidental to the carriage of that matter before its delivery at its final destination.

(4) Any question arising under this Act as to whether—

- (a) any person is a relevant foreign operator ; or
- (b) any law is the relevant foreign law with respect to any matter ; or
- (c) any country is for the time being a relevant territory,

shall be referred to and determined by the Minister.

(5) Save where the context otherwise requires, any reference in this Act to any enactment shall be construed as a reference to that enactment as amended, extended or applied by or under any other enactment, including any enactment contained in this Act.

Northern
Ireland.

14.—(1) In the application to Northern Ireland of the following provisions (hereafter in this section referred to as “the designated provisions”), that is to say, sections 1, 2, 3, 6 and 7 of, and the Schedule to, the Act of 1959 (except subsection (6) of the said section 6) and sections 11 and 12 of this Act (except subsection (3) of the said section 12)—

- (a) any reference to the Minister shall be construed as a reference to the Minister of Commerce for Northern Ireland ;
- (b) the expression “prescribed” shall mean prescribed by regulations made by the said Minister of Commerce, which shall be subject to negative resolution within the meaning of section 41(6) of the Interpretation Act (Northern Ireland) 1954 ;
- (c) any reference to the Treasury shall be construed as a reference to the Ministry of Finance for Northern Ireland ;
- (d) any reference to Parliament shall be construed as a reference to the Parliament of Northern Ireland ;
- (e) subsection (5) of the said section 6 shall have effect as if the words “be made by statutory instrument and” were omitted ;
- (f) in section 12(5) of this Act—

(i) references to the Ministry of Power or to the Crown shall be construed as references respectively to the Ministry of Commerce for Northern Ireland or to the Crown in right of Her Majesty’s Government in Northern Ireland ;

1954 c. 33.
(N.I.)

(ii) for the words from “and any sums” onwards there shall be substituted the words “and any sums so repaid to the Ministry of Commerce shall be treated as part of the revenues of that Ministry”;

and section 12(2)(a) to (d) of the Act of 1959 shall cease to have effect.

(2) Except where the context otherwise requires, in the application to Northern Ireland of any provision of this Act or the Act of 1959 other than the designated provisions, any reference to the Minister shall be construed as a reference to the Minister of Power; and accordingly, in section 10 of the Act of 1959—

(a) in subsection (1), in the definition of the expression “Minister”, the words “and subject to subsection (2) of this section” shall cease to have effect;

(b) in subsection (1), in the definition of the expression “prescribed”, for the words “the Minister” there shall be substituted the words “the Minister of Power and the Secretary of State acting jointly”; and

(c) subsection (2) shall cease to have effect.

(3) In relation to a department of the Government of Northern Ireland using any site as mentioned in section 1(5) of this Act—

(a) references in this Act to the Crown shall be construed as references to the Crown in right of Her Majesty’s Government in Northern Ireland;

(b) references in this Act to the Minister in charge of that department shall be construed as references to the Minister of the Government of Northern Ireland so in charge.

(4) Proceedings in respect of any offence under the Act of 1959 shall not be instituted in Northern Ireland except—

(a) in the case of an offence under any of the designated provisions, by the said Minister of Commerce; or

(b) in the case of any other offence, by the Minister of Power; or

(c) in either case, by or with the consent of the Attorney General for Northern Ireland;

and section 12(3) of the Act of 1959 shall cease to have effect.

(5) In section 10(6) of this Act as it applies to Northern Ireland, the reference to Part VI of the Road Traffic Act 1960 1960 c. 16. shall be construed as a reference to Part II of the Motor Vehicles and Road Traffic Act (Northern Ireland) 1930 as amended or 1930 c. 24. re-enacted (with or without modification) by any subsequent (N.I.) enactment of the Parliament of Northern Ireland for the time being in force.

(6) Section 12(2) and (4) of the Act of 1959 shall apply for the purposes of this Act as they apply for the purposes of that Act.

1920 c. 67.

(7) For the purposes of section 6 of the Government of Ireland Act 1920, the following provisions, that is to say—

(a) the designated provisions ;

(b) so far as they relate to the designated provisions, sections 8 and 12 of the Act of 1959 and this section,

shall be deemed to have been passed before the appointed day within the meaning of the said section 6 ; and section 12 (5) of the Act of 1959 shall cease to have effect.

Channel Islands, Isle of Man, etc.

15.—(1) Section 13 of the Act of 1959 (which provides for the extension of that Act to any of the Channel Islands or to the Isle of Man) shall apply for the purposes of this Act as it applies for the purposes of that Act and shall apply to any other territory outside the United Kingdom for the international relations of which Her Majesty's Government in the United Kingdom are responsible as it applies to those islands.

(2) Any Order in Council made by virtue of the said section 13 or this section may be varied or revoked by any subsequent Order in Council so made.

Expenses.

16. Without prejudice to section 12(5) of this Act, there shall be defrayed out of moneys provided by Parliament any increase attributable to the provisions of this Act in the sums payable out of moneys so provided under any other Act.

Consequential repeals and amendment.

17.—(1) The enactments mentioned in the first and second columns of Schedule 2 to this Act are hereby repealed to the extent specified in the third column of that Schedule.

1961 c. 8.

(2) In section 1(6) of the Electricity (Amendment) Act 1961, for the definition of "nuclear reactor" there shall be substituted the following :—

" 'nuclear reactor' has the same meaning as in the Nuclear Installations (Amendment) Act 1965 ".

Citation and commencement.

18.—(1) This Act may be cited as the Nuclear Installations (Amendment) Act 1965.

1959 c. 46.

(2) This Act and the Nuclear Installations (Licensing and Insurance) Act 1959 may be cited together as the Nuclear Installations Acts 1959 and 1965.

(3) This Act shall come into force on such date as Her Majesty may by Order in Council appoint, and different dates may be appointed for different purposes of this Act.

SCHEDULES

SCHEDULE 1

Sections 4(5),
9(1).

MISCELLANEOUS AMENDMENTS OF ACT OF 1959

1. In section 4(4)—

- (a) for the words from “an action” to “time after” there shall be substituted the words “a claim by virtue of section 1, 2 or 3 of the Nuclear Installations (Amendment) Act 1965 may be made at any time before, but shall not be entertained if made at any time after”;
- (b) the words “on, or in connection with the use of, the site in question” shall cease to have effect;
- (c) for the words “that site” in both places where they occur there shall be substituted the words “a particular relevant site”.

2. In section 4(5)—

- (a) for the words from the beginning to “the claim” in the first place where those words occur there shall be substituted the words “A claim under the Nuclear Installations (Amendment) Act 1965 in respect of any occurrence such as is mentioned in section 1(2)(b) or (c), 2 or 3 of that Act constituting a breach of a person’s duty under the said section 1, 2 or 3”;
- (b) for the words from “the proviso” onwards there shall be substituted the words “section 6 of the said Act of 1965 no payment for the time being falls to be made in satisfaction of the claim”.

3. In section 5(1)—

- (a) for the words from “in connection with” to “indemnity by the licensee” there shall be substituted the words “which have been or may be duly established against the licensee as licensee of that site by virtue of section 1 (1) of the Nuclear Installations (Amendment) Act 1965 or any relevant foreign law made for purposes corresponding to those of section 2 of that Act, excluding, but without prejudice to, any claim in respect of interest or costs”;
- (b) for the words “the said section four” there shall be substituted the words “section 4 of this Act”;
- (c) for the words from “there continues” onwards there shall be substituted the words “it remains possible for the licensee to incur any liability in respect of such an occurrence as is mentioned in section 1(2)(b) or (c) of the said Act of 1965 or by virtue of any relevant foreign law made for purposes corresponding to those of section 2 of that Act”.

Section 17(1).

SCHEDULE 2
ENACTMENTS REPEALED

Chapter	Short Title	Extent of Repeal
2 & 3 Eliz. 2. c. 32.	The Atomic Energy Authority Act 1954.	Section 5(3).
7 & 8 Eliz. 2. c. 46.	The Nuclear Installa- tions (Licensing and Insurance) Act 1959.	Section 4(1) to (3). In section 4(4), the words " on, or in connection with the use of, the site in question " and the proviso. Section 5(3)(a)(ii). Section 6(1). Section 9. In section 10(1), in the definition of " Minister " the words from " except " to " this section ", and the words from " and in " onwards. In section 10(1), the definition of " plant ". Section 10(2). Section 12(2)(a) to (d). Section 12(3) and (5).